

Smt Reeta Jha vs Sh Mukund Kumar Jha on 27 August, 2025

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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Judgment reserved on: 19.0

Judgment delivered on: 27.0

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MAT.APP.(F.C.) 49/2025 and CM APPL. 7144/2025

SMT REETA JHA

Through: Mr. Sanjeev Kumar, Adv

versus

SH MUKUND KUMAR JHA

.....Respondent

Through: Mr. Adarsh Varma and Ms.

Swati Kumar, Adv.

CORAM:

HON'BLE MR. JUSTICE ANIL KSHETARPAL

HON'BLE MR. JUSTICE HARISH VAIDYANATHAN

SHANKAR

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JUDGEMENT

HARISH VAIDYANATHAN SHANKAR J.

1. The present appeal under Section 19(1)(4) of the Family Act, 1984 read with Section 151 of the Code of Civil Procedure is preferred against the Judgment and Decree dated 05.11.2024 in which the learned Principal Judge, Family Courts, Tis Hazari Courts (West), Delhi 2, has declared the marriage as between parties herein as null and void under Section 12(1)(c) of the Marriage Act, 1953.

1

Impugned Judgement.

2

District Judge.

3

Act.

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2. The solitary challenge in this Appeal, as urged on behalf of the Appellant, is that the provisions of Section 12(1)(c) of the Act are not applicable to the present case. Learned counsel for the Appellant submits that there was no concealment of any material fact at

of marriage. It is argued that the Appellant herself was unaware of her medical condition, namely, the absence of a uterus, and therefore, due to the absence of such knowledge, the question of deliberate concealment does not arise.

3. We have heard the submissions advanced by the learned counsel for the Appellant as well as the Respondent, and have perused with care the detailed judgment rendered by the learned District Judge. For the sake of convenience, we consider it appropriate to extract the relevant portions of the Impugned Judgment hereinafter below:

"A. Absence of uterus in the Respondent

14. Admittedly, the marriage of the parties was a valid marriage, solemnized on 21.04.2016 in Delhi. The case of the petitioner (PW1) as made out in his deposition is that the respondent and her family kept him and his family in the dark about the respondent not having a uterus because of which he could not conceive. The petitioner wanted to have children. The petitioner in his examination-in-chief (evidence affidavit) has deposed how the respondent avoided the issue of having children and going to the doctor and that finally on 13.11.2017 the petitioner took her to Origyn Fertility & IVF Centre, Bhabha Hospital, Uttam Nagar, Delhi where she underwent an ultrasound of her lower abdomen. It was on 16.11.2017, that after receiving the report when they went to the doctor, during the discussion the first time it came to the knowledge of the petitioner that the respondent did not have a uterus and her left kidney and therefore could never conceive. The petitioner in his cross-examination reiterated that it was on 16.11.2017, after he got the reports, for the first time he came to know that the respondent did not have a uterus and one kidney. He has further stated that the fact was concealed from him and his parents at the time of the marriage.

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15. The petitioner examined Dr. Rashmi Sharma as PW2 who testified that the prescription dated 13.11.2017 (Ex. P1) of the respondent was prepared by Dr. Ranu Dadu. She was not cross-examined. The prescription (Ex. PW 1/4) was prepared on the letterhead. The petitioner examined Dr. Ranu Dadu as PW3 who testified that her clinic was in the name of Dadu Surgi Gynae Clinic in Pitampura, New Delhi she was a practicing gynaecologist since 2004, She proved the prescription of the respondent dated 13.11.2017 (Ex.PW 1/4) prepared by her. In the prescription she had recommended the respondent for the ultrasound of lower abdomen to Dr. Rajeev. The petitioner examined Dr. Rajeev Choudhary as PW2, Dr. Rajeev Choudhary (PW2) has testified to having conducted the ultrasound

examination and prepared the ultrasound report of the respondent dated 16.11.2017 (Ex PW-1/5) at his clinic Doctor Rajeev Choudhary's Ultrasound Lab as per this report the respondent did not have a uterus and left kidney. Dr. Rajeev Choudhary (PW2) in her examination has denied the suggestion that he had not conducted the ultrasound of the respondent or that the report was prepared falsely at the instance of the petitioner. Significantly, the respondent (RW1) herself in her admitted handwritten statement acknowledged dated 02.12.2017 [Ex. PW-1/8 (Colly)] that during her cross examination has clearly admitted that she did not have a uterus and one kidney. Thus, in view of the above findings, it stands proved that the respondent did not have a uterus.

B. Did the respondent intentionally conceal the fact about not having a uterus?

16. The petitioner has deposed how on one pretext or another on every occasion the respondent started avoiding discussing about conceiving and she told the petitioner that they should try for a child. He has deposed that when the respondent failed to conceive after a year, he requested the respondent to accompany him to a doctor but she refused on one pretext or the other kept avoiding for four to five months. Finally, when the petitioner put his foot down and insisted that she accompany him to the doctor, she sought a week's time and was finally convinced him to try for the last time and that if she could not conceive she would go with him for medical treatment. Finally, on 13.11.2017, he took her to the doctor who recommended an ultrasound and from the ultrasound report on 16.11.2017 it came to the knowledge of the petitioner for the first time that the respondent did not have a uterus and her left kidney. He has deposed that on being asked, the respondent for the first time disclosed that her parents earlier also had got her treated by several doctors for the same problem however, in vain.

17. The respondent in her written statement has balanced the above allegations. However, a scrutiny of her testimony

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inconsistencies in her version as to when and how she first discovered that she did not have a uterus and a kidney, which makes her testimony doubtful. The respondent in her written statement and her examination-in-chief, has claimed that there was no problem in conceiving and no medical checkup or medical treatment was ever got done by the petitioner when she was at her matrimonial home. She has also claimed that the petitioner wanted to have children because of his affair with his co-defendant, Dr. Choudhary. However, later in her cross examination she has admitted having been examined vide prescription (Ex.PW 1/4) of Dr. Dadu (PW4). She also admitted undergoing the ultrasound examination and the ultrasound report (Ex PW 1/5) showing

not have a uterus and left kidney. In her examination-i has claimed that she once, conceived and became pregnant however, due to the immense torture and tension of the she suffered a miscarriage during her stay at the matri and was not provided any medical treatment or checkup. of hers is falsified in view of her admission (later in examination) that she did not have a uterus and that sh medically examined, Interestingly, while in her examina chief she claimed everything was normal and that she ha conceived, when questioned & her cross examination she that she never got pregnant ever and claimed it was God 18. The credibility of the respondent becomes all t doubtful, considering the completely new version she ha the cross examination of the petitioner by way of sugge the petitioner for getting her treated for stones got h the hospital and got her uterus and kidney removed. She claimed that she had this apprehension because of the a marks she found below her navel. The petitioner has den version put through suggestions to him. The respondent cross examination has claimed having an apprehension qu alleged stitch marks below her navel which the acts of petitioner. Here she was confronted with para C of her application under Section 340 Cr.P.C wherein she had st she had got to know about the stitches on 17.03.2020 On hand she claimed that she got to know about the stitche stay in the matrimonial home however, admittedly she di in her matrimonial home after 2017. In her cross examin questioned further, she was not sure about specific dat when she got to know about the stitch marks below her n has admitted in her cross examination that she did not doctor pursuant to her allegedly gaining knowledge qua marks in her matrimonial home and even after coming bac parental home after 06.12.2017. She admitted that she h mentioned anything about stitch marks below her navel i written statement or in any of her complaints nor produ documents qua the same. Although she has claimed that s

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apprehension about the petitioner being responsible fo marks however, she has nowhere stated about filing any with regard to the same. The respondent in her cross ex was confronted with her complaint filed under the Prote Women from Domestic Violence Act, 2005 (Ex. R/X2) where there is not a whisper about any such incident having t The petitioner when questioned stated in his cross exam during intercourse with the respondent he had not seen marks and stitch marks on her lower abdomen or near her parts. The new version put up by the respondent to expl absence of her uterus and kidney makes her claim doubtf

was not aware about the absence of her uterus or kidney 19. The father of the respondent Brij Bhushan Jha significantly, put up yet again, another modified version testified that the respondent was normal and had no bodily infirmity but the petitioner and his family got her treated „disease best known to them and later levelled the allegation she does not have "an ovary" and kidney. In his cross-examination he stated that he was not sure about any "disease" of the respondent as mentioned by him in his evidence also admitted, that he had not seen any surgery marks on the body of the respondent, H. admitted that his allegation with regard to the disease mentioned in the written statement of the respondent, Smt. Kumar (RW4) the friend of the father of the respondent with regard to the money and gifts given at the time of marriage and about the efforts of reconciliation made by the family of the respondent in January 2018, however he has not stated anything in this aspect.

20. The respondent has although claimed that she was not aware that the alleged stitch marks were due to the acts of the petitioner, however, she could not give the reason why she did not get herself medically checked despite having this apprehension, which was something any ordinary prudent person would do. The improvement made by the respondent in the case put to the petitioner by way of suggestions in his cross-examination and in her own cross-examination and in her reply to the application under Section 340 Cr.P.C, that it was the petitioner who had operated upon and got her uterus removed (something which was not mentioned in her written statement or in her evidence) only goes to make the claim of the petitioner appear to be true that the respondent was aware about not having uterus before marriage.

21. The petitioner has deposed that on 14.05.2017, the respondent, petitioner on the advice of his parents went to the Vaidya shrine for seeking blessings and after coming back the respondent informed the petitioner and his mother that she had missed her periods and that 10 days had lapsed and she was pregnant. However, around 28.05.2017 to 30.05.2017, the respondent

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her parental home and after a lapse of about fifteen days when the petitioner asked the respondent about her well-being, she informed him that she had fallen from the stairs and had a miscarriage. The respondent in her written statement and in her examination-in-chief has claimed that she had once conceived but got pregnant however, due to immense torture and tension at the matrimonial home she suffered a miscarriage during her stay at the matrimonial home and was not provided any medical treatment or checkup. This claim of the respondent has to be seen in the light of her clear admission in her cross-examination that she did

uterus. Where the respondent did not have a uterus, men was not a possibility. It is important to note that the one point in her cross examination has claimed to have menstruation till the time she was residing at her matr (i.e. till 06.12.2017) while again later she claimed th 16.11.2017 she did not get menstruation pursuant to whi herself medically examined. She still further, improved she did not have menstruation and this fact was told to petitioner. She again further contradicted itself in he examination by stating that she did not get herself med checked also. She stated that she could not say whether collecting the ultrasound report dated 16.11.2017 she w reconsulted any doctor. The self- contradicting stance respondent makes her version doubtful.

22. Dr. Ranu Dadu the gynaecologist (PW4) proved h prescription, Ex. PW l/4. It is important to note that history given by the respondent to the said doctor as m the prescription, her last menstrual period was on 28.1 false history given by the respondent clearly proves th through concealing the fact that she did not have a ute not menstruate. The respondent was a 24 year old city b at the time of her marriage. As a female she must have aware of the absence of menstruation as a teenager and difficult to believe that she was ignorant of the fact uterus. In the light of the above observations, it is h respondent despite being aware, all thorough intentiona concealed the fact that she did not have a uterus.

C. Was the concealment of not having a uterus and this being able to conceive a material fact concerning the respondent?

23. The case of the petitioner will come under Secti of the HMA only if the consent of the petitioner was ob fraud as to a material fact or circumstance concerning respondent. This brings us to the question whether the concealment, of the fact of not having a uterus by the amounted to concealment of a material fact or circumsta concerning the respondent, The criteria of a material f

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circumstance concerning the respondent, has been laid number of decisions as discussed below.

24. In Vandana J Kasliwal V. jitendra N. Kasliwal MANU/MH/1196/2006, the Bombay high Court Observed:

"25.....in our considered opini marriage is sacrosanct, it requires consent of bot or their guardians, if spouses are not capable of consent, and it must be a free consent and in that have to consider whether the consent was given

voluntarily. Here aid of definition of fraud, even Indian Contract Act, 1872 need not be overlooked and therefore, respectfully differ from the view taken by a single Judge in the case of Raghunath Gopal (supra) where non-disclosure prior to the marriage or concealment of curable epilepsy disease of girl and false representation that she was healthy does not amount to fraud with the meaning of the word used in Section 12 (1) (c) of the Marriage Act, 1955. If regard be had to Section 12 (1) (c) of the Act of 1955, it is clear that if a fact, or circumstance so material as to affect decision of a person to consent to marriage and if there is fraud regarding same, may be by express words or even by concealment, then, marriage could be annulled. However, we hasten to make it clear that it is not every fact or circumstance which would be covered by the provision, but it must be something which goes to the root of the matter, which definitely would weigh with any prudent person to change his mind. It must not be easily detectable. The Court would be very circumspect, cautious and pragmatic in identifying such fact or circumstance. In this case, the first part of the written statement of the appellant that when query regarding abnormal behaviour of the appellant was made during marriage ceremony, it was stated that it might be because of mental stress and failure in the examination and for want of sleep.

(Emph

25. In Pradeep s/o Namdeorao Ambhore V. Pallavi Pradeep Ambhore MANU/MH/0859/2017, the Hon ble Bombay High Court while dealing with section 12 (1) (c) of the HMA discussing various decisions held thus:

"12.... What can be gathered from the aforesaid decisions is that a fact or circumstance which would materially interfere with a happy marital life would be a 'material fact' as also a fact which if disclosed would result in the husband or the wife not agreeing or consenting to the marriage would also be a 'material fact'. In our view, it cannot be said that only such facts

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circumstances which would materially interfere with a happy marital life would only be material facts. Although it may not seriously interfere with the marriage of the party but, would be of such a nature, which if disclosed, would result in either of the party not consenting for the marriage, would also be a 'material fact'. In the cases which we have referred to hereinabove

decree of annulment of marriage is granted where the spouse suffered from epilepsy the uterus was not intact, the wife had never got menses, the husband had disclosed inflated income or misrepresented about his job, the wife suffered from chronic periodontitis, etc. in all these cases, it is held that the wrongful disclosure of a material fact or the concealment of a material fact like these which are referred to in those cases, would result in the annulment of the marriage under Section 12(l)(c) of the Act."

26. The petitioner has testified how he loved children and that was the reason why he had opted for giving tuition as a profession. He has also testified with regard to his keenness to have children because of which he time and again requested the respondent that they should have their own children. He testified that when the respondent could not conceive despite repeated attempts in two months, he became depressed that he could not have children of his own. It is on the insistence of the petitioner that the respondent finally agreed to go to a doctor to get herself checked, when she could not conceive after a year of her marriage, On 16.11.2017, when the petitioner learned from the doctor that the respondent could not conceive, it was a shock to him and he felt cheated and defrauded.

27. The parties admittedly had an arranged marriage through a marriage bureau, Brij Bhushan Jha (RW3) the father of the respondent has testified about the manner in which the marriage was arranged between the parties, both being brahmins from the Mithila region. The marriage being a traditional arrangement, the parties were not known to each other before the marriage. The petitioner has clearly deposed in his testimony about how important it was for him to have children as already stated and how shattered and disappointed he was when the respondent could not conceive. Significantly, the admitted written acknowledgment [Ex .PW1/8 (colly)] of the respondent dated 02.12.2017 wherein she has stated that she was giving permission to her husband to get married again because she could not have an heir and joy of a child as she could not conceive since she did not have a uterus, affirms that the concealment of not having a uterus, was a material fact concerning the respondent, and the court held that concealment of the fact of not having a uterus

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not being able to conceive, is clearly a material fact concerning the respondent which would seriously interfere with the marriage of the parties and was definitely something of such nature that if disclosed would have resulted in the petitioner not contracting the marriage.

D. Did the petitioner after the discovery of the fraud his full consent with the respondent as her husband? Is petition barred under section 12 (2) (a) (ii) of the HMA 28.

Section 12 (2)(a) of the HMA reads: -

(2) Notwithstanding anything contained in sub-section no petition for annulling a marriage

(a) On the ground specified in clause (c) of sub-section (1) shall be entertained if

(i) the petition is presented more than one year after fraud had been discovered to operate or, as the case may be, the fraud had been discovered; or

(ii) the petitioner has, with his or her full consent with the other party to the marriage as husband or wife after the force had ceased to operate or, as the case may be, the fraud had been discovered;

29. The fraud i.e. the concealment of the fact that respondent did not have a uterus and was thus not able to conceive was discovered on 16.11.2017. The respondent left the matrimonial home on 06.12.2017. The issue that arises is whether in the interim period i.e. between 16.11.2017 to 06.12.2017 the petitioner with his full consent lived with the respondent as her husband, so, then the petition on this ground cannot be entertained. The picture that emerges from the testimony of the parties is that after discovery of the fraud on 16.11.2017, the relations never got normalized between them. As made out from the testimony of the petitioner after the discovery of the fraud, the relations between the parties became strained. The petitioner has deposed how after the fraud being discovered, he questioned the respondent who for the first time disclosed that her parents earlier also had a similar problem. "from several doctors for the same problem however, In the end, he has testified how when the doctor categorically, stated that the respondent could never conceive and have children and he was shocked while the respondent remained silent. He has again reiterated that he felt that he had been cheated by the respondent and her family members. This part of the testimony remains unrebutted.

30. The petitioner has deposed that around 20.11.2017 to 22.11.2017, to make the situation better when the father of the petitioner intervened and tried to calm the respondent, the respondent got angry and started abusing him and attempted to hang her from the fan and threatened to falsely implicate them. He has

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that he was still in a state of shock as his dream of having children got shattered. However, the respondent instead of making the situation better kept hurling abuses at the petitioner and his family. He has also deposed about how things got worse when he found a recording in her mobile phone, in which she was

requesting her mother to send goons to teach the petitioner's family a lesson and that it also contained a recording was planning and plotting to usurp the property of the petitioner. The recordings took place because of a pre-application in the mobile. On opening the chats in the phone, he was shocked to find that the respondent had on occasions texted "I love you babu" to a person not known to the petitioner. He also came across an audio recording in which the respondent in a luring tone had recorded "I love you babu" which was addressed and delivered to the above said person who was not saved in contact list. He has further testified that he confronted the respondent with the same, she started quarrelling and asked him why he had touched her mobile phone without asking her and that he had guts asking her who this person was and that it was enough for him to know that this person was the respondent and she loved him very much. The petitioner was shocked by the testimony of the petitioner on the above aspects and the same is more or less unrebutted.

31. The petitioner has testified as to how the respondent, after realizing that she could no longer control the petitioner's family on 01.12.2017, expressed her desire to stay at her home and as the parents of the petitioner were not keeping her, when he requested her to stay back as there was no one to look after her in his absence, she became infuriated and went to her room and lighted a camphor tablet on her hand threatening to set herself ablaze and how finally on 06.12.2017 the respondent, without informing anyone, went to her parental home. He has further testified that being acquainted with the nature of the respondent and considering that she had threatened to injure them in false cases, he had at the first instance informed the entire chain of events to the police. Vide Complaint dated 19.12.2017, The father of the respondent Brij Bhushan Jha has testified that in the beginning of December 2017, he met him and asked him to take away the respondent from the matrimonial home and how later the petitioner did not receive his calls. As per the version of the respondent also the fact that there was never a fine between them even after the fact of not having been discovered and it was the petitioner who made sure that the respondent did not return to the matrimonial home on 06.12.2017. The respondent in her cross examination has stated that after 06.12.2017 she called him several times on his phone however, he kept avoiding her and this shows that things never normalized after the discovery.

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Also the fact that they were recording each other's conversations shows that the relationship never resumed normalcy.

32. What is of most significance is the deposition

petitioner that the elders and respected members of the intervened from 29.11.2017 till 02.12.2017 after which respondent acknowledged in writing vide her two handwritten notes dated 29.11.2017 and 02.12.2017 [Ex. PW1/8 (colly) she was separating from the petitioner and she did not anything from him and also acknowledged that she did not uterus and one kidney and thus would never be able to c and thereby granted permission to the petitioner to get again. The first handwritten acknowledgment dated 29.11 the respondent states that she was separating from her her full senses and that she did not want anything from husband. The second handwritten acknowledgment of the respondent dated 02.12.2017 as already, mentioned, stat was giving permission to her husband to remarry because not give him an heir as she did not have uterus and one she could not give her husband the joy of a child.

33. The respondent in her cross examination has ad executing the said handwritten acknowledgments Ex. PW1/ (colly), However, she has claimed that she executed the threat-of the petitioner that he would murder her, The deposed that the said documents were executed in the pr parents of both the parties and elders. The claim of th that she wrote the two notes under threat of being murd becomes difficult to believe considering that no compla alleged threat was ever made by her or her family, Also claim appears to be a clear afterthought. The second ha note of the respondent is dated 02.12.2017 and the resp the matrimonial home on 06.12.2017. It is no where the either of the parties that after 16.11.2017 (the date o the fraud) they resumed normal relations or cohabited.

34. In Bikkar Singh V. Mohinder Kaur MANU/PH 0146/ while discussing the law laid down by Section 12(1)(c) HMA, the Hon ble High Court of Punjab and Haryana obser that:

"8.....The statute declares that it i in the eye of law where one of the parties was ind enter into a matrimonial alliance under coercion, or fraud evidencing lack of free consent. Therefor marriage procured by force or fraud has no sanctit voidable at the election of the injured party. Thi substantive provision, the legislature, however, b decree of annulment of marriage as an exception if specific conditions spelt out in sub-section (2) o 12 are satisfied. An analysis of this provision re clause (c) of sub-section (1) would indicate that

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the discovery of fraud two other significant cond have to be satisfied; firstly, the most significant

Upturn of the two spouses living together as husband and wife; secondly, that such living together must be with the full and free consent of the condoning spouse. The language used here is meaningful. It first points out that one spouse must live with the other, but that by itself is not sufficient. For instance, if both of them are living in the same premises but not as husband and wife, the same may not be conclusive. The Statute, however, requires that such a living must be a matrimonial living together as husband and wife even after a conscious discovery of the fraud and with a full and free consent. The import of the language used, therefore, is only a pointer to the fact that there has to be a conscious and deliberate condonation and a full ratification of the matrimonial status which alone would amount to a bar against challenging a marriage which otherwise is vitiated by force or fraud. In other words, both the physical and the mental requirements must concur to ratify a marriage which intrinsically is not valid. It cannot be given ex post facto sanction by subsequent conduct of living together as husband and wife with free consent. We do not think that these stringent conditions of the Statute would stand satisfied by a solitary act of sexual intercourse and the present case is a patent example of inequity which would result from a contrary construction.

9. A close analysis of the judgment under appeal would show that the larger principle and the concept of condonation of matrimonial offence was not adequately canvassed before the learned Single Judge. In particular, pointed attention was apparently not drawn to the provisions of sub-section 2(a) (i) and (ii) which are the most relevant and material ones and called for special interpretation with greatest respect to the learned Judge. We are inclined to hold that keeping the special language of the statute in mind as also the larger concept of condonation, it would be an overly strict and inflexible, may so, a hyper technical construction to lay down that a marriage otherwise patently voidable and fit for annulment would become sanctified beyond challenge if it be rendered irrevocable by a solitary act of sexual intercourse without more.

(Emphasis added)

35. Considering the entire chain of events since the fraud was discovered on 16.11.2017 and especially the handwritten acknowledgments dated 29.11.2017 and 02.12.2017 [Ex. PW-10],

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(colly)] executed by the respondent, just because the

under the same roof till 06.12.2017, it cannot be said discovering the fraud, the petitioner has with his full with the respondent as her husband. The said handwritten acknowledgments would not have been executed by the respondent, if the petitioner would have lived with the as a husband, after the fraud was discovered. Living as would presume resumption of normalcy and cohabitation i intention to rebuild the broken. This would be possible a bilateral intention on the part of both spouses which was consciously missing. Thus it can be safely held tha discovery of fraud on 16.11.2017, the petitioner with h consent did not live with the respondent as her husband the bar of Section 12 (2) (a)(ii) of the HMA would not case.

36. To sum up, this Court finds that the petitioner succeeded in discharging the onus upon him and has been prove on record that his consent was obtained by fraud material fact concerning the respondent in terms of Sec (c) of the HMA. The marriage between the petitioner and respondent is liable to be declared voidable as per Sec (c) of the Hindu Marriage Act. In view of my finding on there is no need for a finding on the alternate issue. accordingly decided in favour of the petitioner and aga respondent and hence the petitioner is entitled to a de annulment of the marriage under Section 12(1) (c) of th

ISSUE NO2: Relief:

37. In view of my findings on issue No.1, the marria between the petitioner Mukund Kumar Jha and the respond Rita Jha is declared null and void under Section 12 (1) the Hindu Marriage| Act, 1955. Parties are left to bear cost. Decree sheet be drawn up accordingly. File be con the Record Room."

4. Upon due consideration, this Court is of the view that present case squarely attracts the provision of Section 12(1)(Act, which stipulates as under:

"12. Voidable marriages. - (1) Any marriage solemnised, before or after the commencement of this Act, shall be and may be annulled by a decree of nullity on any of th grounds, namely: -

(a) that the marriage has not been consummated owing to impotence of the respondent; or

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(b) that the marriage is in contravention of the c in Clause (ii) of Section 5; or

(c) that the consent of the petitioner, or where the guardian in marriage of the petitioner was required under Section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978, the consent of such guardian was obtained or by fraud as to the nature of the ceremony or to some fact or circumstances concerning the respondent); or
(d) that the respondent was at the time of the marriage some person other than the petitioner."

(emphasis)

5. Section 12(1)(c) of the Act contemplates annulment of marriage on the ground of fraud "...as to any material fact or circumstance concerning the respondent". The issue that arises for determination is whether the absence of uterus is a "material circumstance" sufficient to render the marriage as between the parties voidable and whether there was any concealment of the same by the Party of such a "material fact or circumstance" leading to a conclusion that it amounted to obtaining consent by playing a fraud on the other. Both would need to be established.

6. It is well settled that the expression "fraud" occurring in this provision is to be understood in the matrimonial context, distinct from its meaning under the Indian Contract Act, 1872.

7. In the process of matrimonial negotiations, minor errors or omissions are often made and by themselves do not constitute fraud. The Court is required to assess whether the concealment pertains to a fact so essential that it strikes at the very foundation of the marital relationship and materially impairs the fulfilment of marital obligations. Concealment or misrepresentation of trivial particulars would not suffice; however, non-disclosure of a circumstance that

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fundamentally affects the prospects of a normal and happy marital life would amount to fraud within the meaning of Section 12(1)(c).

8. The principles governing the scope and meaning of "fraud" in the matrimonial context, as distinct from its interpretation under the Indian Contract Act, stand crystallized in a catena of decisions. In this context, this Court's judgment in *Asseem Aggarwal v. Ashi Kumar* is particularly instructive, and reads as follows: -

"25. Clause (c) of Section 12(1) of the Act of 1955 provides that the marriage may be annulled by a decree of nullity if the consent of the petitioner is obtained by "force" or "fraud". Such "force" or "fraud" must be as to the "nature of the ceremony" or as to "any material fact or circumstance" concerning the respondent.

26. The term „Fraud“ in the context of Section 12(1)(c) of the Act of 1955

interpreted by the Bombay High Court in the case of Gopal Daftardar v. Vijaya Raghunatha Gopal Daftarda, SCC OnLine Bom 52. It culled out a distinction between „fraud“ as appearing in Section 17 of the Indian Contract Act, 1872 and in Section 12 of Hindu Marriage Act, 1955 by observing that marriage under Hindu Law is treated as a Samskara or sacrament and not a mere civil contract. The term "fraud" as used in Hindu Marriage Act, 1955 is not a "fraud" in any general sense so that every misrepresentation or concealment would not be fraudulent. If the consent given by parties is a real and free solemnization of marriage, then the same cannot be cancelled by alleging fraud.

27. Similarly, in the case of Harbhajan Singh v. Shri Balab, 1963 SCC OnLine Punj 139, it was observed that a ground for annulment of marriage under the Hindu Law is not to those cases where the consent for marriage was obtained by some deception. It could not have been the intention of the legislature to include every misrepresentation that amounts to fraud as a ground for dissolving a marriage.

28. Thus, under the Hindu Law, not every misrepresentation or concealment of a fact shall amount to "fraud" as envisaged in Section 12(1)(c) for annulment of a marriage. The fraud must be material as to the nature of ceremony or to any material circumstance concerning the respondent and thus, at the time of marriage, it is pertinent to consider what would tantamount to a material fraud.

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9. In Jasbeer v. Nishta Dawar⁶, this Court, while relying on the decision of the Madras High Court in Sujatha v. Hariharan⁷, made certain significant observations in reference to "Fraud" under Section 12(1)(c) of the Act. The pertinent extracts from Jasbeer (supra) are reproduced herein below:

"17. In Sujatha v. Hariharan, (1995) 2 Mad LJ 327 DB, the Madras High Court observed that to constitute a "fraud" under Section 12(1)(c) of the HMA there must be an abuse of confidence, some intentional imposition or some deliberate concealment of material facts which are the fundamental basis of the contract.

18. The meaning of material fact or circumstance concerning the respondent was examined in the case of Pradeep S. Rao Ambhore vs. Pallavi Pradeep Ambhore 2017 (6) Mh. where the moot question was whether the concealment of the respondent suffering from sickle cell anemia, amounted to material fraud. It was observed that while it is difficult to

certainly what amounts to a material fact, it is safe to say that a fact or circumstance which is of such a nature that was likely to interfere with the marital life of the parties, then it is a material fact or circumstance. Such a material fact or circumstance may be a fact or a circumstance in respect of a person or the character of the person and not a fact or a circumstance whether it is curable or not. Further, a fact crucial to the marriage if disclosed would result in either of the parties not entering into the marriage, would also be termed as a material fact or circumstance. (emphasis supplied)

10. A perusal of the relevant portion of the Impugned Judgment would clearly reveal that the learned District Judge has examined the evidence painstakingly, the evidence led by the parties as well as the various contentions that was canvassed, and thereafter, come to a categorical conclusion that the Appellant was in fact guilty of having conceived the child from the Respondent, the fact of her not having a uterus. The District Judge also notes that the absence of her uterus would constitute a "material fact or circumstance" concerning the

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1995 (II) M.L.J. 327 (DB).

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Respondent and the concealing of which would render the same voidable under Section 12 (1)(c) of the Act.

11. In *Pradeep v. Pallavi Pradeep Ambhore* 8 , the Bombay Court, while relying upon the decision in *P. v. K.* 9 , made certain significant observations in reference to "Fraud" as contemplated by Section 12(1)(c) of the Act, particularly in the context where concealment of a serious medical condition such as prolapse or absence of uterus was held to constitute suppression of a material fact and that goes to the root of the marital relationship. The pertinent extracts from *Pradeep* (supra) are reproduced herein below:

"12. What can be gathered from the aforesaid decision is that a fact or circumstance which would materially interfere with the marital life would be a „material fact“ as also a fact which if disclosed would have resulted in the husband or the wife not agreeing or consenting to the marriage would also be a material fact. In our view, it cannot be said that only such circumstances which would materially interfere with the marital life would only be material facts. A fact, though it may seriously interfere with the marital life of the parties, if of such a nature, which if disclosed, would result in either party not consenting for the marriage, would also be a material fact. In the cases which we have referred to hereinafter, where a decree of annulment of marriage is granted where the wife suffered from epilepsy, the uterus was not in place,

never got the menses, the husband had disclosed inflated income or misrepresented about his job, the wife suffered chronic periodontitis, etc. In all the aforesaid cases, that the wrongful disclosure of a material fact or the concealment of a material fact like the ones which arise in those cases, would result in the annulment of the marriage under Section 12(1)(c) of the Act."

(emp)

12. While examining the record, we note that, the Appellant's testimony is riddled with material contradictions regarding her

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medical condition, particularly the absence of a uterus, and knowledge thereof. On the one hand, she sought to portray herself as capable of conceiving, even alleging pregnancy and miscarriage; whereas, in her cross-examination, she categorically admitted she never had a uterus. This fundamental inconsistency, coupled with belated and unsubstantiated versions about alleged surgical removal and stitch marks, destroys her credibility.

13. The Appellant's repeated denials, followed by subsequent admissions, coupled with the mutually destructive stands taken in her written statement, examination-in-chief, and cross-examination, lead us to conclude that the Appellant was playing a cat and mouse game and tried to concoct different versions of an unexisting state of affairs. This, in our view, establishes that she was fully aware of her medical condition but chose to suppress it.

14. Such deliberate concealment of a condition that strikes at the very root of matrimonial life constitutes the core ground for the affirmation of the findings of the learned District Judge, who held the Appellant guilty of practicing fraud upon the Respondent. The learned District Judge rightly concluded that the Appellant had changed her version on several factual aspects, leading to the inescapable conclusion that her conduct lacked bonafides.

15. The material contradictions in the pleadings and assertions made by the Appellant are duly noted by the learned District Court in paragraphs 17 and 32, as extracted hereinabove, of the Impugned Judgment. This Court finds no reason to depart from the well-considered findings of the learned District Judge. The omission in the present case cannot be characterized as trivial or inadvertent.

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was a deliberate concealment of a fact, that goes to the very institution of marriage.

16. Procreation forms a genuine expectation of a spouse integral aspect of marital life alongside companionship and emotional support. The inability to conceive, arising from the absence of a functional uterus, strikes at the heart of marital obligations and expectations cannot, therefore, be treated as immaterial. It is well-recognized that marriage encompasses procreation and companionship, as observed by the Hon'ble Supreme Court in *Pinakin Mahipatray Rawal vs State of Gujarat*¹⁰. The relevant excerpt of the said judgment reads as follows:

"18. Marital relationship means the legally protected relationship of interest of one spouse to another which includes marital companionship to another like companionship, living under the same roof, mutual relation and the exclusive enjoyment of them, to have sexual intercourse, their up-bringing, services in the home, support, affection, liking and so on."

17. The learned District Judge also examined whether, after the discovery of fraud, the Respondent had, with his consent, continued to live with the Appellant as husband and wife. We concur with the findings of the learned District Judge that the mere fact that the Respondent resided under the same roof after the discovery of fraud cannot be treated as a resumption of marital cohabitation. Cohabitation necessarily implies a conscious and mutual intention of both spouses to restore normalcy in their marital relationship, which was absent in the present case. Consequently, the bar under Section 12(2)(a)(ii) of the Act is not attracted.

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18. On this point, the Bombay High Court in *Pooja v. Shri Rameshwarrao Kale*¹¹, made relevant observations and upon which we place concurrence. Relevant portion of the said judgment reads as under:

"29. Section 12(1)(c) of the Act of 1955 provides ground for annulment of the marriage in cases, where consent was obtained by force or by suppressing material fact. However, Section 12(2)(ii) of the Act of 1955 is a rider on Section 12(1)(c) of the Act of 1955. If after the force is removed or fraud is discovered, the petitioner continues to live with the respondent,

with his full consent as husband and wife, the petition for annulment of the marriage cannot be entertained.

30. The husband has come up with a case that he came about the disease in first week of the August 2017 and that in June 2017 he had been to Hyderabad with the wife. Therefore, from the sequence of the paragraphs in the petition, it cannot be said that they went to Hyderabad after the husband got knowledge of the disease. Rather, the cross examination also shows that they had been to Hyderabad before August 2017. It is a matter of record that the husband came to know about the disease in first week of August 2017, whereas the wife was staying at the house of the husband till 16/08/2017.

31. The expression used in Section 12(2)(ii) of the Act that the petitioner has with his full consent, lived with the respondent as husband emphasizes living as husband with the wife's consent for whatever period it may be, provided the fraud is condoned. If the husband or the wife, as the case may be, overlooks the alleged fraud and condones it, with the wife's reconciliation, whatever may be the period, the petitioner is said to have lived with full consent with the other party to the marriage as husband or wife, as the case may be. In other words, the condition laid down in Section 12(2)(a)(ii) of the Act does not depend upon the lapse of any time after the commission of the alleged fraud. In fact, if the fraud is condoned with the wife's reconciliation, such a reconciliation may be called with the wife's consent.

32. The case in hand does not show any reconciliation. The husband has come up with case of the non-consummation of the marriage. Mere staying at the husband's house for more than one week after the husband got knowledge of the disease, cannot amount to condonation of the non-disclosure of material facts. Therefore, bar under Section 12(2)(ii) of the Act of non-disclosure cannot be applicable to the case in hand."

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(emphasis supplied)

19. We also stand fortified in our conclusion in the fact that the pleadings of the Appellant before the learned District Judge are vague, and contain no categorical assertion of her alleged ignorance regarding the absence of a uterus. We concur with the view of the learned District Judge, as recorded in paragraph 22 of the Impugned Judgment, that it is difficult to accept that a 24-year-old woman residing in a metropolitan city like Delhi could have remained unaware of the complete absence of menstruation.

20. It is a matter of settled medical knowledge that menstruation is nothing but the shedding of the uterine lining, "endometrium" without a place for the endometrium to develop and thereafter the biological phenomenon of menstruation cannot occur. It is a well known fact that in several parts of India, Menarche is an occasion to celebrate. It is difficult for this Court to comprehend the mindset of the Respondent, that till the age of 24, when she got married, she believed that she had a uterus. This Court finds it hard to believe that till the age of 24 she never sought to question the absence of menstruation when in all likelihood, most women, from nearabout the time when they are teenagers would experience Menarche. The report of the Doctor states that she lacked a uterus and thereby she has not have experienced the natural phenomenon of menstruation.

21. We also take note of the discussion and findings of the District Judge regarding the manner in which the Appellant sought to canvass a whole new version that she discovered certain stitching on her navel and assumed that the Respondent might have caused the removal of her uterus. This contention which is taken in the Appellate

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was neither raised in the Written Statement nor in the Affidavit evidence filed by the Respondent herein. This claim surfaced during the cross examination of the Respondent, by way of a suggestion. We do not find it necessary to enter into further details of the facts which has already been meticulously examined and addressed by the learned District Judge in the Impugned Judgment. The fact that the Appellant chose to continuously spin a new version at various stages of time leads us to conclude that there is, in fact, no merit in the Appeal.

22. Resultantly, we are of the considered opinion that the District Judge, upon a scrupulous and comprehensive appreciation of the material on record, has rightly and judiciously held that the marriage, in the facts and circumstances of the present case, should to be declared a nullity under Section 12(1)(c) of the Act. Consequently, the present appeal stands dismissed.

23. The present appeal, along with pending application(s), is accordingly disposed of in the above terms.

24. No order as to costs.

ANIL KSHETARPAL, J.

HARISH VAIDYANATHAN SHANKAR, J. AUGUST 27, 2025/v/sm/kr